

Authority for Personal Data  
P.O. Box 93374, 2509 AJ The Hague  
Hoge Nieuwstraat 8, 2514 EL The Hague  
T 070 8888 500 - F 070 8888 501  
autoriteitpersoonsgegevens.nl  
The Minister of Justice and Security  
Ms. Drs. D. Yeşilgöz-Zegerius  
P.O. Box 20301  
2500 EH THE HAGUE

Date

January 11, 2024

Our reference

z2023-229721

Your letter of

October 4, 2023

Contact person

Your reference

4847419

Subject

Advice on the draft bill amending the Act on Judicial and Criminal Procedure Data  
to establish the purposes of the use of the European Criminal Records Information System

Dear Ms. Yeşilgöz,

In your letter dated October 4, 2023, the Authority for Personal Data (AP) was consulted based on the provisions of Article 35b, first paragraph, under b, of the Police Data Act (Wpg) in conjunction with Article 27, third paragraph, of the Act on Judicial and Criminal Procedure Data regarding the draft bill amending the Act on Judicial and Criminal Procedure Data to establish the purposes of the use of the European Criminal Records Information System (hereinafter: the draft).

An assessment of the personal data aspects of the draft gives the AP reason to make a comment.

Scope of the draft

EU regulations stipulate that the European Criminal Records Information System (hereinafter: Ecris) is to be used for certain purposes, namely for criminal proceedings<sup>1</sup>, security investigations<sup>2</sup>, for a request from the individual for an extract of the judicial data concerning him<sup>3</sup>, and for the

1 Article 7, first paragraph, Framework Decision 2009/315/JHA of the Council of February 26, 2009, on the organization and content of the exchange of information from criminal records between Member States (hereinafter: Framework Decision Ecris).

2 Article 10, second paragraph, of Directive 2011/93/EU of the European Parliament and of the Council of December 13, 2011, on combating sexual abuse and sexual exploitation of children and child pornography, and replacing Framework Decision 2004/68/JHA of the Council (OJ EU 2011, L 335); Article 7, first paragraph, last sentence, of Regulation (EU) 2019/816 of the European Parliament and of the Council of April 17, 2019, establishing a centralized system for determining which Member States have information on convictions of third-country nationals and stateless persons (Ecris-TCN) supplementing the European Criminal Records Information System and amending Regulation (EU) 2018/1726 (hereinafter: Ecris-TCN Regulation).

3 Article 6, second paragraph, of the Ecris Framework Decision; Articles 7, first paragraph, last sentence, and 25 of the Ecris-TCN Regulation.

Date

January 11, 2024

Our reference

z2023-229721

granting of permits for the use of precursors for explosives. The Ecris Framework Decision and the Ecris-TCN Regulation provide room for the national legislator to determine that Ecris is used for purposes other than those mentioned above. The concept aims to establish these other purposes in the Act on Judicial and Criminal Justice Data. The other purposes for which Ecris may be used are: 1) the investigation related to the certificate of conduct, 2) the advising of the Bureau for the Promotion of Integrity Assessments by the Public Administration, 3) the suitability investigation of the prospective adoptive parent and foster parent, and 4) the assessment of the criterion of public order and some related criteria in the procedures of immigration law and nationality law.

#### Advice

##### Necessity

In the explanatory memorandum accompanying the concept, it is summarized regarding the necessity and suitability of using Ecris for the aforementioned other purposes that a conviction in another member state is just as relevant as a conviction in the Netherlands, since the risk to society is not less with a conviction in another member state. It is concluded that the use of Ecris for the mentioned purposes is compatible with the aim of Ecris to prevent new criminal offenses. Without the use of Ecris, relevant convictions in other member states would, according to the explanation, not be taken into account in the assessment concerning the mentioned other purposes.

Based on Article 3, second paragraph, of the Wjsg, judicial data may only be processed to the extent that this is necessary for the purposes formulated by or pursuant to this law. It is primarily important that the concept is suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability). Furthermore, it is important that the objective cannot reasonably be achieved as effectively by other means that are less intrusive on the fundamental rights of the individuals involved (subsidiarity) and that the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality).

The AP notes that the explanatory memorandum does not address possible alternative methods for the use of Ecris for the mentioned other purposes, which would make a less far-reaching infringement on the fundamental rights of those involved. Nor is the proportionality of the use of Ecris for the other purposes substantiated. For instance, it is unclear which data on criminal convictions are specifically requested via Ecris for the respective purposes and why this data is necessary for the individual purposes. The reciprocal nature of the use of Ecris for the other purposes should also be taken into account, as the inclusion of these purposes in the Wjsg

4 Article 6, ninth paragraph, of Regulation (EU) 2019/1148 of the European Parliament and of the Council of June 20, 2019, on the marketing and use of precursors for explosives, amending Regulation (EC) No. 1907/2006 and repealing Regulation (EU) No. 98/2013 (OJ EU 2019, L 186).

5 Article 6, first paragraph, of the Ecris Framework Decision; Article 7, first and second paragraphs, of the Ecris-TCN Regulation.

6 Article 2a, first paragraph, items c through h, and second paragraph, of the concept.

7 Par. 2.4, 2.5, 2.6, and 2.7 of the explanatory memorandum accompanying the concept.

8 See also: Parliamentary Documents II 2022/23, 22112, no. 3732, p. 4.

#### Date

January 11, 2024

Our reference

z2023-229721

not only implies that the relevant Dutch authorities may request data via Ecris, but also that authorities from other member states with similar powers may request data via Ecris from Dutch authorities.

The AP advises to supplement the explanation with a justification for the suitability, subsidiarity, and

proportionality of the use of Ecris for each purpose.

#### Legal Certainty

The concept must be sufficiently clear and precise regarding its scope and must be predictable in its application (legal certainty).

The AP first notes that it is not clear from the concept and the accompanying explanation in which cases data may be requested or provided via Ecris for a specific purpose. Does this apply, for example, to all applications for a Certificate of Good Conduct (VOG), naturalization, etc., and for all member states, or only in certain cases?

The AP advises to include criteria in the law regarding the application of Ecris on this point.

#### Purpose Limitation

Regarding the use of Ecris for purposes other than for a criminal procedure, the following is included in the explanation of the concept:<sup>9</sup>

At the time of the implementation of the Ecris Framework Decision, the prevailing view was that other purposes did not need to be laid down in a legal regulation.<sup>10</sup> However, the subsequently established General Data Protection Regulation (GDPR, Regulation 2016/679) and the Law Enforcement Data Protection Directive (Directive 2016/680) require the specific and explicit definition of the purpose of data processing. The later established Ecris-TCN Regulation also follows this. Against this background, the government considers it desirable that the purposes of the use of Ecris be laid down in the law.

The AP believes that the stated prevailing view on this point is incorrect. Under the then applicable Framework Decision 2008/977/JHA, personal data could only be collected by the competent authorities for specific, explicit, and legitimate purposes in the context of their tasks and could only be processed for the purpose for which they were collected.<sup>11</sup> This requirement has been implemented, among other things, in Article 3, second paragraph, of the Wjsg. It states that judicial data may only be processed to the extent that this is necessary for the purposes formulated by or under this law.

The AP advises to delete the last paragraph of section 1 of the explanation of the concept.

<sup>9</sup> Explanation of the concept, p.1.

<sup>10</sup> Stb. 2012, 130, page 48.

<sup>11</sup> Article 3, first paragraph, Framework Decision 2008/977/JHA.

#### Date

January 11, 2024

Our reference

z2023-229721

4/4

#### Workload AP

The AP notes that the concept is not expected to require additional effort from the AP.

#### Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman